

9:00 AM

Line 6

25-CIV-00912 YANG MIN YANG VS. JOSEPH GIRAUDO, ET AL

YANG MIN YANG
JOSEPH GIRAUDO

JONATHAN E. MADISON
DAVID M. LIU

Defendant Royal Business Bank's Motion to Strike Portions of Plaintiff's First Amended Complaint

TENTATIVE RULING:

Defendant Royal Business Bank's Unopposed Motion to Strike Portions of Plaintiff Yang Ming Yang's First Amended Complaint is GRANTED.

Defendant Royal Business Bank moves to strike the fourth cause of action, as the First Amended Complaint is not verified. Plaintiff has not filed any opposition.

The fourth cause of action is for quiet title. (Aug. 7, 2025 First Amended Complaint, ¶¶ 48–57.) A complaint seeking quiet title “shall be verified.” (Code of Civ. Proc., § 761.020.) The FAC alleges Plaintiff Yang Ming Yang “will” verify the pleading, but he has failed to do even after the defect was brought to his attention for at least a third time. (See Dec. 5, 2025 Motion to Strike, p. 6, ¶ 3; Jul. 15, 2025 Order, p. 5, ll. 21–24; Mar. 13, 2025 Demurrer, p. 8, ll. 21–23.) “Where the complaint must be verified and is not, it may be stricken on motion.” (5 Witkin, Cal. Procedure (6th ed. 2026); see *Silcox v. Lang* (1889) 78 Cal. 118, 122–123.)

Accordingly, the motion to strike is GRANTED and the fourth cause of action is now stricken.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 7

25-CIV-04482 CARLOS TAPIA, ET AL VS. CHRISTINA CORPUS, INDIVIDUALLY AND
IIN HER OFFICIAL CAPACITY, ET AL

CARLOS TAPIA
CHRISTINA CORPUS, INDIVIDUALLY AND
IN HER OFFICIAL CAPACITY

GRANT A WINTER
WAI SHUN WILSON LEUNG

Defendant Daniel Perea's Motion for Leave to File Second Amended Cross-Complaint

TENTATIVE RULING:

For the reasons stated below, Defendant/Cross-Complainant Daniel Perea's ("Perea") "Motion for Leave to File Second-Amended Cross-Complaint," filed May 6, 2026, is GRANTED. (Code Civ. Proc. §§ 473(a)(1); 576.)

Cross-Defendant County of San Mateo's June 1, 2026 Request for Judicial Notice ("RJN") is GRANTED. (Evid. Code §§ 452(b), (d).)

Perea's proposed Second Amended Cross-Complaint (SACCC) (*see* May 6, 2026 Rillo Decl., Ex. B), among other changes/additions, seeks to add a Petition for Writ of Mandate, which, if asserted, would seek "to compel Defendant County to provide [Mr. Perea] with a defense in this action, indemnify him in connection with this action, and to advance, reimburse, and pay for his fees and costs necessarily incurred in this action." (Proposed SACC, ¶ 112.)

Having reviewed the parties' briefing and defendant Perea's proposed SACC, the Court grants the request for leave to amend. California's judicial policy is to exercise discretion liberally to permit amendment of pleadings. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939). Here, no trial date has been set, and at last report very little discovery has occurred. The case is also not yet at issue as there are unserved parties. The initial Case Management Conference is not scheduled to take place until Nov. 2, 2026.

Further, the County does not argue that any prejudice would result from the Court granting leave to amend, aside from the County having to defend against the new Petition for Writ of Mandate. However, that is not the type of "prejudice" the Court normally considers when deciding whether to grant leave to amend. Nor does the County argue that Mr. Perea unreasonably delayed in seeking leave to amend. The County only contends that Perea's proposed Petition for Writ of Mandate lacks substantive merit, primarily because Perea (as argued by the County) previously admitted/conceded a conflict of interest (*see* Govt. Code § 955.2(a)(3)), which the County argues necessarily establishes that the County properly and reasonably declined Perea's request that the County defend/indemnity Perea in this civil case. While the County is correct that courts have discretion to deny leave to amend where a proposed new cause of action clearly lacks merit or fails as a matter of law, ordinarily, courts do not decide the validity of a proposed new cause of action in deciding whether to grant leave to amend. After leave to amend is granted, the County will have the opportunity to attack the validity of the amended pleading. (*Kittredge*